



U.S. Department
of Transportation

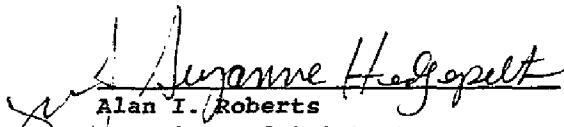
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 4607 (EXTENSION)
FIRST REVISION October 31, 1978

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 4607 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to May 30, 1995. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUN 25 1993

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

Armstrong Laboratories, Inc.
West Roxbury, MA

April 27, 1993



DEPARTMENT OF TRANSPORTATION
RESEARCH AND SPECIAL PROGRAMS ADMINISTRATION
WASHINGTON, D.C. 20590

DOT-E 4607
(FIRST REVISION)

REFER TO:

1. Armstrong Laboratories Div., West Roxbury, Mass., is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages of a compressed gas for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipment of plastic coated glass bottles containing aerosol formulations and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on application dated September 5, 1978, by Armstrong Laboratories, Div. submitted in accordance with 49 CFR 107.105, and the public proceeding thereon.
3. HAZARDOUS MATERIAL (Descriptor and Class). Non-flammable, non-poisonous compressed gas (aerosol) formulation having a gauge pressure not exceeding 125 psig at 130°F.
4. PROPER SHIPPING NAME (49 CFR 172.101). Compressed gas, n.o.s.
5. REGULATION AFFECTED. 49 CFR 173.306(a)(3).
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel and cargo-only aircraft.
7. SAFETY CONTROL MEASURES. The packaging prescribed consists of an inside plastic coated glass bottle having a maximum volumetric capacity of 17 cubic inches. The plastic coating must be sufficiently heavy and strong to prevent glass shrapnels. In addition:
 - a. Each bottle (without plastic coating), must be capable of withstanding a gauge pressure of 250 psi without bursting;
 - b. One bottle out of each lot of 25,000 bottles or less successively produced per day must be pressure tested to destruction and must not burst below 250 psig. Additionally, one normally charged bottle at 70°F. out of the same lot must be dropped from a height of 6 feet onto an unyielding surface without dispersion of glass shrapnels, and venting all gas pressure without inflating the plastic coating. If either of the two bottles fail, the lot must be rejected or ten additional bottles may be selected at random and subjected to the test under which failure occurred. Should any of the ten bottles thus tested fail, the entire lot must be rejected. All bottles constituting a lot must be of like material, size design, construction, finish, and quality;

- c. Each bottle must not be liquid full at 130°F;
- d. Each bottle, as filled for shipment, must be heated until the pressure in the container is equivalent to the equilibrium pressure of the contents at 130°F., without evidence of any leakage, or other defect;
- e. Bottles must be packaged in strong outside fiberboard boxes, and must be securely cushioned to prevent breakage during transportation.

8. SPECIAL PROVISIONS.

- a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
- b. A copy of this exemption, kept current, must be carried aboard each vessel and aircraft.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation (OHMR) as soon as practicable.

10. EXPIRATION DATE. November 1, 1980.

Issued at Washington, D.C.:

for Douglas A. Roberts
Alan I. Roberts
Associate Director
Hazardous Materials Regulation
Materials Transportation Bureau

10/31/78
(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U. S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: B of E, FHWA, FRA, USCG, FAA